

25NNCV07097 25NNCV07097

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NNCV07097 Hearing Date: July 8, 2026 Dept: P

[TENTATIVE] ORDER DENYING DEFENDANT

SHENGCHEN SHI'S MOTION TO VACATE JUDGMENT AND ENTER A DIFFERENT JUDGMENT

I. INTRODUCTION

This action

arising from the alleged fraudulent representations for immigration services.

On October 6, 2025, Plaintiff Haihua Lin ("Plaintiff") filed a Complaint against Defendants Shengchen Shi ("Shi" or "Defendant"), Metoro Immigration Consulting LLC ("Metoro"), and DOES 1 through 20 (collectively, "Defendants"), inclusive for: (1) Contractual Fraud (Intentional Misrepresentation); (2) Conversion; (3) Unfair Competition (Bus. & Prof. Code § 17200 et seq.); (4) Deceit by Forgery/Alteration of Documents; (5) Restitution/Unjust Enrichment; and (6) Intentional Infliction of Emotional Distress.

On February 17, 2026, Plaintiff and Defendant executed a written Settlement Agreement. On April 2, 2026, the Court granted Plaintiff's motion to enter judgment pursuant to Code of Civil Procedure section 664.6 and entered judgment against Defendant. On June 8, 2026, Defendant filed the instant motion to vacate the judgment and enter a different judgment pursuant to Code of Civil Procedure sections 663 and 663a. Plaintiff filed an opposition on June 15, 2026. No reply has been filed.

II. LEGAL STANDARD

Code of Civil Procedure section 663 provides that:

A judgment or decree, when based upon a decision by the court, or the

special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.

2. A judgment or decree not consistent with or not supported by the special verdict.

Code Civ. Proc., §
663.

III. ANALYSIS

Defendant

moves for an order vacating the judgment and entering a different judgment pursuant to Code of Civil Procedure sections 663 and 663a. (Motion, p. 1.)

Defendant argues the judgment

entered in the amount of RMB 1,037,200.00 is inconsistent with and unsupported by Plaintiff's own pleadings. Specifically, Defendant contends Plaintiff's Complaint alleged Defendants had previously repaid \$105,000, leaving a net outstanding loss of approximately \$124,980. Defendant argues the judgment improperly awarded Plaintiff the full RMB 1,037,200.00 without crediting the alleged \$105,000 repayment and therefore exceeds the damages alleged in the Complaint. (Motion, pp. 2-7.)

Plaintiff opposes, arguing

Defendant has failed to establish any basis for relief under Code of Civil Procedure section 663. Plaintiff contends the judgment was not entered based upon the allegations of the Complaint, but rather pursuant to the parties subsequently executed written Settlement Agreement, which Defendant signed, and which expressly required Defendant to repay RMB 1,037,200.00. Plaintiff further argues Defendant's motion is an improper attempt to relitigate or rewrite the Settlement Agreement after the Court previously entered judgment pursuant to Code of Civil Procedure section 664.6. (Opposition, pp. 5-9.)

The Court agrees with Plaintiff.

Code of Civil Procedure section 663

permits a court to vacate a judgment and enter a different judgment only where the judgment rests upon an incorrect or erroneous legal basis not consistent with or not supported by the facts. It is not a vehicle to relitigate factual disputes or revisit the merits of issues previously decided.

Here, Defendant has not

demonstrated that the judgment rests upon an erroneous legal basis within the meaning of section 663. On April 2, 2026, the Court granted Plaintiff's motion to enter judgment pursuant to Code of Civil Procedure section 664.6 after determining that the parties had entered into an enforceable written Settlement Agreement. The Court expressly found that the Settlement Agreement required Defendant to remit RMB 1,037,200.00 no later than February 25, 2026, that Defendant materially breached the agreement by failing to make the required payment, and that Plaintiff was therefore entitled to entry of judgment in that amount.

The judgment was therefore based

upon, and entered pursuant to, the terms of the Settlement Agreement—not the allegations contained in Plaintiff's Complaint. Defendant's reliance on the Complaint's allegations concerning pre-settlement repayments is misplaced. Those allegations predated the parties' execution of the Settlement Agreement. Parties are free to resolve litigation by entering into a settlement agreement that differs from the allegations or damages asserted in the pleadings. Once the Court determined that the Settlement Agreement was enforceable, its obligation under section 664.6 was to enter judgment pursuant to the terms of that agreement.

Defendant's present motion does not

identify any legal error in the Court's enforcement of the Settlement Agreement. Rather, Defendant seeks to revisit the amount agreed upon by the parties by arguing that the Settlement Agreement should have reflected the allegations contained in the Complaint. Rather, Defendant seeks to revisit the amount set forth in the Settlement Agreement, which is beyond the limited scope of relief available under Code of Civil Procedure section 663.

Based on the foregoing, the Court

DENIES the motion to vacate judgment.

IV. CONCLUSION AND ORDER

The Court

DENIES Defendant's motion to vacate judgment and enter a different judgment.

Defendant

is to give notice.

Dated: July 8, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT